



U.S. Department
of Transportation

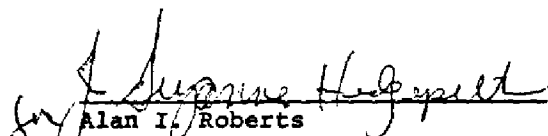
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10155 (EXTENSION)
ORIGINAL January 1, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10155 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 27 1993

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Walpole, Inc.
Mt. Holly, NJ

May 17, 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10155

JAN 1 1990

1. Walpole, Incorporated, Mt. Holly, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the flammable solids corrosive materials, oxidizers and Class B poison described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking, and sale of a collapsible, disposable, polyethylene-lined woven polypropylene bulk container bag having a capacity not greater than 2200 pounds each with top and bottom outlets, for shipment of flammable solids, corrosive solids, oxidizers, and poison B solids, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Walpole Incorporated's application dated March 21, 1989, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Zinc dust, classed as flammable solid; Sodium nitrate, Aluminum nitrate, Ammonium nitrate-carbonate mixture, Ammonium nitrate fertilizer, Trichloro-s-triazinetriene dry, classed as oxidizers; Aluminum bromide, anhydrous, Ammonium hydrogen fluoride, Antimony tribromide, Bromoacetic acid, Chloroacetic acid, Sodium hydroxide, classed as corrosive materials; Arsenic trioxide, Waste arsenical mix; classed as poison B; and other solid materials classed as flammable solids, oxidizers, corrosive materials, or poison B materials specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Transportation (OHMT) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable solid n.o.s., Oxidizer, n.o.s., Corrosive solid, n.o.s., Poison B solid, n.o.s., or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.154, 173.182, 173.217, 173.245b, 173.366, 173.368, 173.365.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel. Shipment by cargo vessel must be made in accordance with Appendix A of this exemption.

7. SAFETY CONTROL MEASURES.

- a. Packaging prescribed is a non-DOT specification collapsible flexible bag, disposable (non-reusable) bulk container. Bag is fabricated of woven polypropylene, incorporating liftstraps of woven polyester webbing plus a lining of polyethylene film (of 0.0035 inch minimum thickness), and having discharge and inlet openings closed by means of polypropylene rope, and a capacity of not over 2,200 lbs. Bag prepared for shipment, must be capable of satisfactorily withstanding: free-fall Drop test (three from a height of four feet); Jerk test; Topple test; Topple & Drag test; Righting test as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers", Packaging Institute, U.S.A. procedure T-4102-85, dated February 1985.

JAN 1 1990

- b. For shipment by cargo vessel, each bulk bag containing any of the commodities identified in paragraph 3 above and authorized for transportation by vessel must be overpacked in accordance with the Secondary Containment Requirements specified in Appendix A of this exemption.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.
- b. Shipment by highway must be in closed vehicles or freight containers, in full truckloads only, except that ammonium nitrate fertilizer need not be in closed vehicles.
- c. Shipment by rail must be in box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.
- d. The marking requirements of Section 172.301 must be complied with.
- e. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- f. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.
- g. When bulk bags are transported by vessel, the following additional special provisions apply:
 - i. Bulk bags must be enclosed in a secondary containment system in accordance with Appendix A of this exemption. "Secondary containment system: means a closed or open freight container or transport vehicle.
 - ii. Bulk bags containing ammonium nitrated fertilizer, sodium nitrate, or sodium nitrite must be shipped as follows:
 - (1) In open or closed freight containers or transport vehicles; or
 - (2) As break-bulk cargo, provided-
 - (a) No readily combustible hazardous material or non-regulated material is stowed in the same hold or compartment.
 - (b) The hold or compartment is dry and thoroughly cleaned of all loose debris and dunnage.

JAN 1 1990

(c) The hatches are inspected for weathertightness before loading.

(d) The hold or compartment is free of sharp projections which could tear or puncture the bulk bags.

(e) After the bags are unloaded, the hold or compartment is inspected for spillage and any residue removed.

iii. Whenever a bulk bag containing a material classed as an oxidizer is loaded or unloaded as break bulk cargo:

(1) Firehoses must be laid out in the loading or unloading area must be operable at all times.

(2) Smoking, carrying matches or lighting devices, or performing hot work shall be prohibited in the loading or unloading area; and the area posted with appropriate warning signs.

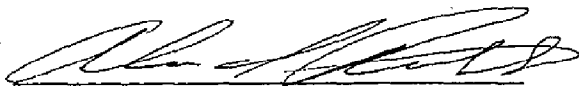
iv. The provisions of 49 CFR 176.410(d), except subparagraphs (d)(1) and (d)(2), do not apply to shipments of ammonium nitrate fertilizer under this exemption.

h. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. October 31, 1991.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

JAN 1 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG.

JAN 1 1990

APPENDIX AFLEXIBLE INTERMEDIATE BULK CONTAINERS (BULK BAGS)
SECONDARY CONTAINMENT REQUIREMENTS
FOR SHIPMENT BY CARGO VESSEL

<u>Hazardous Materials</u>	<u>UN Number</u>	<u>Secondary Containment</u> (Freight Container or Transport Vehicle)
Aluminum bromide, anhydrous	UN 1725	open or closed
Aluminum nitrate	UN 1438	not required
Ammonium hydrogen fluoride, solid	UN 1727	open or closed
Ammonium nitrate-carbonate mixture	UN 2068	not required
Ammonium nitrate fertilizer	UN 2067	not required
Ammonium persulfate	UN 1444	not required
Antimony tribromide	UN 1549	open or closed
Arsenic trioxide	UN 1561	open or closed
Bromoacetic acid	UN 1938	open or closed
Calcium cyanide, solid	UN 1575	Bulk bags not authorized
Chloroacetic acid, solid	UN 1751	open or closed
Chromic acid, solid	UN 1463	Bulk bags not authorized
Magnesium granules, coated	UN 2950	closed only
Para-nitro-toluene sulfonic acid	UN 2811	open or closed
Potassium dichloro-s- triazinetriene	UN 1479	open or closed
Potassium persulfate	UN 1492	not required
Sodium azide	UN 1687	open or closed
Sodium dichloro-s- triazinetriene	UN 1479	open or closed
Sodium hydroxide	UN 1823	open or closed
Sodium nitrate	UN 1498	not required
Sodium nitrite	UN 1500	not required
Sodium perborate monohydrate	UN 1479	open or closed
Sodium persulfate	UN 1505	not required
Sodium sulfide, anhydrous	UN 1385	Bulk bags not authorized
TEMIK (Aldicarb pesticide)	UN 2588	open or closed
Trichloroisocyanuric acid, dry	UN 2468	open or closed
Trichloro-s-triazinetriene, dry	UN 2468	open or closed
Waste arsenical mixture	UN 1557	open or closed
Zinc dust	UN 1436	closed only